

TENTATIVE RULING: The demurrer appears to be MOOT. “A party may amend its pleading once without leave of the court at any time . . . after a demurrer . . . is filed but before the demurrer . . . is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer” (Code Civ. Proc., § 472, subd. (a).)

Plaintiff filed a First Amended Complaint (FAC) prior to the date on which an opposition to the present demurrer was due. There is no proof of service of the FAC appearing in the Court’s file. Presuming, however, that the FAC was timely served, the issues raised by the present demurrer are MOOT.

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Jose Guadalupe Valdes Flores v. Cruz Angel Castro et al

26CV001090

DEFENDANTS POSITIVE INVESTMENTS, INC.; PRIME A INVESTMENTS-VICTORVILLE, LLC; AND PI PROPERTIES 113 PARTNERS, LLC’S MOTION TO STRIKE PLAINTIFF JOSE GUADALUPE VALDES FLORES’ PRAYER FOR PUNITIVE DAMAGES

TENTATIVE RULING: The motion is DENIED. Entity Defendants (defined below), and each of them, are granted 10 calendar days’ leave to file an Answer to the Complaint.

Defendants Positive Investments, Inc. (PI); Prime A Investments-Victorville, LLC (PRIME A); and PI Properties 113 Partners, LLC (PIP-113, and collectively as Entity Defendants) move, pursuant to Code of Civil Procedure sections 435.5 and 438 for an order striking from Plaintiff’s Complaint in the action: (1) the prayer for punitive damages; (2) certain allegations relating thereto in paragraphs 6, 52, 64, and 66; and (3) paragraph 49 in its entirety.

Entity Defendants’ Request for Judicial Notice is GRANTED. The Court takes judicial notice of the Complaint filed in this action, but not for the truth of any matter alleged therein.

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Id.* at §437, subd. (a).) In ruling on a motion to strike, the Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.)

“The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385.)

However, “[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).) As such, in ruling on a motion to strike the Court is required to assume

the truth of the allegations. (See *Clausen v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) The Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.) Finally, as to a claim that matters are irrelevant, where a motion to strike is so broad as to include relevant matters, it may be denied in its entirety. (*Allerton v. King* (1929) 96 Cal.App.230, 234.)

“The civil law is normally concerned with compensating victims for actual injuries sustained at the hands of a tortfeasor. Punitive damages are an exception to this rule. Since 1872, they have been statutorily authorized in actions ‘not arising from contract’ where the tortious event involves an additional egregious component – ‘oppression, fraud, or malice.’ [Citation.] Punitive damages are to be assessed in an amount which, depending upon the defendant’s financial worth and other factors, will deter him and others from committing similar misdeeds. [Citation.] Because compensatory damages are designed to make the plaintiff ‘whole,’ punitive damages are a ‘windfall’ form of recovery. [Citation.]” (*College Hospital Inc. v. Super. Ct.* (1994) 8 Cal.4th 704, 710-11.)

Thus, to adequately state a claim for punitive damages, a complaint must contain allegations that the defendant has been guilty of oppression, fraud or malice. (Civil Code § 3294, subd. (a); *Turman v. Turning Point of Central Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) “Malice” includes “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).)

Moreover, allegations of these elements must be pled with exactitude. (*G.D. Searle & Co. v. Super. Court* (1975) 49 Cal.App.3d 22, 27. “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice.” (*Id.* at 29.) Mere conclusory allegations parroting the language of the statute will not suffice to support a prayer for punitive damages. (*Smith v. Super. Court* (1992) 10 Cal.App.4th 1033, 1042.) However, because the Court reads the allegations of the operative pleading as a whole, “[p]leading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation.” (*Perkins v. Super. Court* (1981) 117 Cal.App.3d 1, 6-7.) An order striking a claim for punitive damages is improper where the complaint provides notice to the defendants of a plaintiff’s “precise claims against them.” (*Id.* at 7.)

The Court finds that the Complaint contains allegations sufficient to satisfy the applicable pleading standard to support a prayer for punitive damages. (See *id.* at ¶¶ 2-4, 12, 15-16, 22, 24-25, 28-31, 34-37, 48-51.) The Court finds that the Complaint also contains allegations sufficient to satisfy the requirement of Civil Code section 3294, subdivision (b) that “[w]ith respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (See *id.* at ¶¶ 4, 12, 15-16, 28-30, 35-37, and 50.)

Entity Defendants variously contend that Plaintiff is unable to “prove” his claims (see, *e.g.*, Support Memo at 8:12-14) and/or “does not present evidence” in support of the motion (see *id.* at 10:8-11.) At the pleading stage, Plaintiff is required to neither present evidence nor prove any matters.

Entity Defendants contend that “Plaintiff has not provided any specific facts that the Business Entity Defendants knowingly intended for Defendant CASTRO to cause injury against Plaintiff FLORES. There is no evidence that the Business Entity Defendants had advanced warning that a lawless assault against Plaintiff was actually imminent which the Business Entity Defendants willfully suppressed, or that the Business Entity Defendants had any ability *ab initio* to stop the assault.” (Support Memo at 8:14-20.)

None of the authority cited by Entity Defendants, however, supports the suggestion that, in order to support a pray for punitive damages, a plaintiff is required to plead that a defendant intended for the injury to occur. While such intention is certainly sufficient to support the prayer, it is not necessary. As the authority cited by Entity Defendants, and the authority discussed above, makes clear, allegations of “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others” or “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civil Code § 3294, subd. (c)(1) and (2).) As noted above, the Court finds that Plaintiff has adequately pled facts of these elements.

Finally, the Court finds no merit in Entity Defendants’ public policy arguments. Caselaw provides that punitive damages are appropriate in actions against residential landlords and property managers, where “pleadings sufficiently allege facts setting forth long existing physical conditions of the premises which portend danger for the tenants [and] set out that respondents knew of those conditions for up to two years, had power to make changes, but failed to take corrective and curative measures.” (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) While the details of the allegations here differ in certain respects, the Court finds that the holding in *Penner v. Falk* is sufficient to foreclose the argument that permitting punitive damages in such circumstances is against public policy.

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In The Matter of Cameron Dean Busquaert

26CV001237

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.